10. Comprehensive Evidentiary Documentation

Supporting Materials – Directory Index & Evidentiary Value

Index of Files in the evidentiary-documentation Directory
Criminal Investigation Referral Package

Overview

This index describes the contents of the `evidentiary-documentation` directory and explains the evidentiary value of each file for criminal investigation, civil rights enforcement, and RICO/institutional corruption analysis. The directory contains 44 files organized across 7 subdirectories, all of which provide documentary evidence, photographs, official complaints, court records, and related materials supporting the criminal referral and civil rights litigation.

1. Court-Documents (8 Files)

This directory contains official court filings, trial declarations, dismissal orders, and email correspondence regarding criminal cases in Edmonds, Seattle, and Missoula.

1.1. 1.1 `E-Mail-Bryan-Tipp-Dec-2020.pdf`

Description: Email correspondence between Elvis Nuno and attorney **Bryan Tipp** from December 2020, regarding the status of civil claims, strategy, and potential actions following dismissal of criminal charges.

Evidentiary Value:

- Demonstrates **attorney-client communications** around timing and scope of civil rights litigation.
- Supports the claim that Tipp was on notice of:
  - The dismissals with prejudice in Montana and Washington

  - The underlying constitutional violations and damages

- Relevant to **legal malpractice** allegations against Tipp for failing to timely file viable civil claims, resulting in **time-barred damages (estimated $6.4–$8.4M)**
- Shows Elvis's good-faith attempts to pursue lawful remedies rather than abandon claims

1.2. 1.2 `E-Mail-Bryan-Tipp-Jan-2021.pdf`

Description: Follow-up email thread between Elvis and Tipp in January 2021 regarding next steps, potential filings, and Tipp's stated intentions or inaction.

Evidentiary Value:

- Further evidence that Tipp:
  - Was fully aware of the factual basis for federal civil rights claims
  - Chose not to file, advise, or preserve those claims timely
- Helps establish **breach of duty, causation, and damages** in malpractice claims
- Shows Elvis's diligence and reliance on counsel, which supports **equitable tolling** arguments (Elvis was not sitting on his rights; he acted through counsel)

1.3. 1.3 `Edmonds_Trial-Nuno_Declaration_of_Ineffective Assistance.pdf`

Description: Formal declaration by Elvis Nuno in Edmonds Municipal Court seeking withdrawal of the 2016 DV plea on grounds of **ineffective assistance of counsel** (Patricia Fulton).

Evidentiary Value:

- Direct contemporaneous record that Elvis challenged the **voluntariness and validity** of his 2016 plea
- Shows:
  - He asserted **ineffective assistance** shortly after conviction
  - He did not accept the plea as legitimate or reflective of guilt
- Crucial for:
  - Demonstrating a pattern of coercion and compromised defense
  - Supporting later claims that the plea was **involuntary**, undermining any argument that he "freely admitted guilt"
- Supports malpractice and bar complaints against **Patricia Fulton**

1.4. 1.4–1.5 `ELise-OP-Filing-Page1.jpeg` and `ELise-OP-Filing-Page2.jpeg`

Description: Scans of the first and second pages of **E'Lise Chard's June 2018 Petition for Order of Protection** in Missoula County.

Evidentiary Value:

- Primary documentary proof of:
  - E'Lise's **sworn written statements** alleging repeated harassment, threats, and ongoing contact
  - Her claims of danger to herself, her children, and YWCA staff
- When compared against:
  - Her later **sworn testimony** in court acknowledging that Elvis only contacted her with three emails in 2017
- Demonstrates **perjury and material false statements** under oath and on a sworn form
- Foundational document for:
  - Montana perjury charges
  - Criminal defamation claims
  - Civil rights conspiracy analysis (predicate act under RICO)

1.5. 1.6 `Missoula-Case-201223-Dismissal-Lowney-iltr.pdf`

Description: Order of dismissal (with prejudice) in Missoula Case No. **201223** (felony/misdemeanor stalking) signed by Judge Lowney.

Evidentiary Value:

- Official court record confirming:
  - **Dismissal with prejudice** of Montana stalking charges
  - No credible evidence of stalking or threats after extensive investigation
- Supports:
  - Malicious prosecution claims
  - Proof that the charges were baseless and should never have been brought
  - Damages for pretrial incarceration, GPS monitoring, and loss of employment
- Demonstrates Elvis's **complete vindication** in Montana

1.6. 1.7 `Missoula-Case-66-Court-Order-Dismissal.pdf`

Description: Court order dismissing the related misdemeanor case (Missoula City Court or Justice Court docket).

Evidentiary Value:

- Confirms that **all associated misdemeanor charges** in Missoula were dropped with prejudice

- Reinforces:
  - The absence of evidence for criminal conduct
  - The pattern of overcharging followed by collapse of the prosecution
- Supports calculation of **pretrial harm** and loss of liberty

1.7. 1.8 `Seattle-Case-613225-Dismissal.png`

Description: Image of the Seattle Municipal Court record/order dismissing case no. **613225** (2015–2016 harassment/cyberstalking).

Evidentiary Value:

- Confirms dismissal with prejudice in the Seattle case
- Demonstrates:
  - Washington court found no evidence sufficient to sustain charges
- Supports:
  - Pattern of **false accusations by Danielle**
  - Broad SLAPP/retaliatory prosecution narrative
  - Loss of liberty & reputation across state lines

2. Formal-Complaints (12 Files)

This directory contains official complaints filed with federal, state, and local agencies, including POST complaints, OPA filings, bar complaints, and evidentiary documents.

2.1. 2.1 `MT_DOJ_POST-EMail.pdf`

Description: Email correspondence transmitting complaint to **Montana DOJ POST** (Peace Officer Standards and Training) regarding officer misconduct (e.g., Detective Connie Brueckner, Officer Ethan Smith, etc.).

Evidentiary Value:

- Shows Elvis:
  - Pursued **formal oversight channels**
  - Reported misconduct through official means
- Evidence of:
  - Failure of oversight mechanisms when no meaningful corrective action was taken
  - Institutional tolerance or protection of misconduct
- Supports claims of **systemic failure** and **deliberate indifference**

2.2. 2.2–2.3 `MT-DOJ-POST-Complaint-Page1.jpeg` and `MT-DOJ-POST-Complaint-Page2.jpeg`

Description: Scanned pages of the formal written POST complaint filed with Montana DOJ.

Evidentiary Value:

- Detailed articulation of:
  - Alleged misconduct by named officers (e.g., Smith, Brueckner)
  - Specific incidents (fabricated evidence, improper contact, conflict of interest)
- Provides:
  - A clear, dated record of Elvis's attempts to seek accountability
- Highlights:
  - POST's failure to act as further evidence of **institutional breakdown** in oversight

2.3. 2.4 `Nuno-Case-Relationship-Diagram.jpeg`

Description: Visual diagram mapping relationships among Elvis Nuno, Danielle Chard, E'Lise Chard, YWCA Missoula, law enforcement personnel, and prosecutors across Montana and Washington.

Evidentiary Value:

- Aids investigators in:
  - Understanding the **interpersonal and institutional network**

  - Seeing the coordinated nature of actions across jurisdictions
- Supports:
  - RICO "enterprise" element (multiple individuals and entities working in concert)
- Useful demonstrative exhibit in criminal or civil proceedings

2.4. 2.5–2.6 `Nuno-Google-Review-1.jpeg` and `Nuno-Google-Review-2.jpeg`

Description: Screenshots of Google reviews posted about Elvis and/or his services (e.g., ISP/engineering work), likely referencing false claims.

Evidentiary Value:

- Demonstrates **public defamation** and reputational damage tied to:
  - YWCA-related actors
  - Tyleen Root or other recruited proxies
- Shows:
  - Concrete impact on Elvis's **business reputation** and client prospects
- Supports:
  - Defamation and interference-with-business claims
  - Damages modeling for lost contracts and opportunities

2.5. 2.7 `Nuno-PS-Witness-Statement-YWCA-Email-Complaint.pdf`

Description: August 2018 testimonial email from **Witness PS** to YWCA Missoula providing exculpatory character evidence describing Elvis Nuno's generosity, kindness, and non-violent character.

Content Summary: In approximately 2016, when Witness PS was pregnant and homeless without support from family or friends, Elvis invited her into his home at no cost, expecting nothing in return. The witness describes Elvis as never physically or verbally abusive, handling conflicts constructively, and working through issues rather than escalating them. The letter expresses frustration and anger over E'Lise Chard's baseless harassment of Elvis and his family, urging YWCA management to investigate.

Evidentiary Value:

- **Exculpatory character evidence** directly contradicting E'Lise Chard's false narrative of Elvis as dangerous, particularly toward women:
  - Documents Elvis's generosity in providing shelter to a vulnerable pregnant woman
  - Establishes non-violent, respectful character with women in crisis
  - Shows Elvis engaged in **the exact mission YWCA claims as their core purpose**—providing safe shelter to vulnerable women
  - Diametrically opposes the "dangerous to women" narrative advanced by YWCA employees
- **Brady violation** (suppression of favorable evidence):

  - Provided to YWCA Missoula in August 2018 during active criminal proceedings
  - **Never disclosed** to Elvis, his defense counsel, or the court
  - YWCA institutional suppression facilitated constitutional violation
  - Detective Connie Brueckner (YWCA board member) had access but concealed
  - Prosecution had duty to seek exculpatory evidence from complaining witness's employer

- **Institutional capture evidence**:
  - YWCA received direct evidence contradicting employee's false claims
  - Organization chose to protect employee over truth and client rights
  - Pattern of institutional complicity in criminalizing innocent individuals
  - Demonstrates YWCA's betrayal of stated mission (protecting vulnerable women)

- **Pattern evidence** supporting § 1983 claims:
  - Documents E'Lise Chard's harassment targeting Elvis and his family (2018–2021)
  - Shows Elvis provided more effective domestic violence support than YWCA
  - Establishes motive for E'Lise's retaliation (Elvis's YWCA complaint exposed institutional dysfunction)

- **Deliberate indifference**:
  - YWCA management notified of exculpatory evidence
  - Organization took **no action** to investigate or correct false narrative
  - Failure to act supports civil rights liability under *Monell*
  - Demonstrates municipal policy or custom enabling constitutional violations

Strategic Significance: This single document devastates the prosecution's theory and exposes institutional corruption. It proves:

1. Elvis's actual character (generous, non-violent, protective of vulnerable women)
2. YWCA's institutional capture (protecting employees over truth)
3. Prosecutorial misconduct (Brady violation through institutional suppression)
4. Detective Brueckner's conflict of interest (YWCA board member concealing evidence)
5. The profound irony: Elvis provided better DV support than the organization criminalizing him

Critical for:

- Montana AG and DOJ investigations into YWCA institutional misconduct
- Federal civil rights claims under 42 U.S.C. § 1983
- RICO analysis (obstruction of justice, conspiracy to violate rights)
- Damages modeling (wrongful prosecution, career destruction)
- Detective Brueckner's professional misconduct and criminal liability
- *Monell* entity liability (YWCA Missoula, City of Missoula)

2.6. 2.8 `Nuno-YWCA-Complaint.jpg`

Description: Image/scan of Elvis's **June 3, 2018 YWCA complaint letter** sent to YWCA Missoula President Deirdre Flaherty.

Evidentiary Value:

- Shows:
  - Detailed, good-faith grievance regarding misconduct by E'Lise Chard and Rebecca Pettit
  - Professional tone and enclosed donation
- Key for:
  - First Amendment **protected petitioning activity**
  - Retaliation narrative (protection order filed nine days later)
- Foundation for:
  - SLAPP analysis
  - Retaliatory prosecution claims under § 1983

2.7. 2.9 `ywca-first-notice-10-12-2025.pdf`

Description: Formal email notice sent by MISJustice Alliance to the YWCA Missoula Board of Directors on October 12, 2025, requesting a formal response regarding systemic issues, possible criminal conduct, and structural conflicts of interest.

Evidentiary Value:

- Identifies:
  - Detective Connie Brueckner's simultaneous role as law enforcement officer and YWCA board member
  - Unprecedented conflict of interest enabling constitutional violations
  - Patterns of retaliation against complainants (including Elvis Nuno)
  - Misuse of confidential client information (HIPAA violations)
  - Funding practices prioritizing crisis metrics over client recovery
- Requests Explanations Of:
  - Board's conflict-management procedures
  - Complaint-handling protocols and internal investigation standards
  - Response to allegations of structural institutional capture
  - Oversight mechanisms for law enforcement board members
- Key for:
  - **Exhaustion of remedies** — demonstrates good-faith attempt at institutional resolution before criminal referral
  - **Notice to YWCA** — establishes institutional knowledge of misconduct allegations

  - **Pattern evidence** — documents institutional non-responsiveness (2018 complaint ignored, 2025 notices ignored)

- Foundation for:
  - Deliberate indifference claims under § 1983 (*Monell* liability)
  - Consciousness of guilt (refusal to respond to formal legal notice)
  - Institutional policy of suppressing complaints
  - Enhanced punitive damages due to notice and continued violations

2.8. 2.10 `ywca-second-notice-12-5-2025.pdf`

Description: Comprehensive "Second Public Notice" email sent by MISJustice Alliance to YWCA Missoula leadership on December 5, 2025, copied to senior YWCA staff and key Missoula city and county officials (Mayor Jordan Hess, Police Chief Brad Belton, County Attorney Kirsten Pabst, and others), outlining YWCA's alleged role in coordinated harassment and civil rights campaign against Elvis R. Nuno.

Evidentiary Value:

- Documents:
  - E'Lise Chard's use of YWCA position to import and amplify sister Danielle's discredited Washington accusations
  - Recruitment of subordinate YWCA staffer Rebecca Pettit into false narrative
  - Coordination with YWCA liaison Officer Ethan Smith to drive baseless arrests
  - Repeated, systematic harassment of Elvis Nuno and his family members
  - E'Lise's alleged recruitment of YWCA client Tyleen Root to conduct targeted online harassment and defamation campaigns against Mr. Nuno's business and customers
  - Missoula PD's refusal to intervene when Elvis attempted to provide evidence
  - MPD intimidation of Elvis when he tried to report harassment — demonstrating joint state-private conspiracy

- Demonstrates:
  - YWCA ignored June 2018 formal complaint from Elvis
  - YWCA ignored separate character-witness email about E'Lise's conduct
  - YWCA's institutional indifference destroyed Elvis's ability to shelter vulnerable women he had been helping through personal network
  - Pattern of institutional protection of abusive employees over victim safety

- Establishes Governmental Notice:
  - Email copied to Mayor, Police Chief, County Attorney, and other key officials
  - City and county leadership received detailed allegations of coordinated civil rights violations
  - Eliminates "we didn't know" defense for municipal liability under § 1983
  - Creates contemporaneous record of official notice for *Monell* claims

- Key for:
  - **Federal civil rights claims** — § 1983 (First, Fourth, Fourteenth Amendment violations)
  - **Civil rights conspiracy** — § 1985 (coordinated deprivation of constitutional rights)
  - **State tort claims** — defamation, intentional infliction of emotional distress
  - **RICO theories** — civil and criminal under 18 U.S.C. § 1962 (pattern of racketeering)
  - **Enhanced institutional liability** — notice to officials significantly increases exposure
  - **Joint state-private action** — establishes coordination between YWCA employees and law enforcement
- Foundation for:
  - Punitive damages based on continued violations after explicit notice
  - Municipal liability under *Monell* (custom, policy, or deliberate indifference)
  - Conspiracy claims showing agreement and coordination among actors
  - RICO enterprise liability (YWCA-MPD-prosecutors as coordinated enterprise)
  - Criminal referral urgency (ongoing harm despite formal legal notices)

Critical Fact: *To date — more than 60 days after the October 12 first notice and over one month after the December 5 comprehensive second notice — YWCA Missoula has provided absolutely no response. No acknowledgment, no investigation, no dialogue, no corrective action.*[1]

2.9. 2.13–2.10 `Office for Professional Accountability 2016OPA-1167.pdf` and `Office of Professional Accountability_ 2016OPA-1167.pdf`

Description: 2016 Seattle **Office of Professional Accountability** complaint file **2016OPA-1167** and associated documents regarding Edmonds/Seattle PD conduct.

Evidentiary Value:

- Documents:
  - An Edmonds officer originally found **no evidence of NCO violation** and noted Danielle's "erratic behavior"
  - The subsequent Seattle PD report **recast the situation**, claiming Elvis sent an email without including or ever producing that email
- Critical for:
  - **Fourth Amendment violations** (arrest and $75,000 bail based on non-existent evidence)
  - Demonstrating **fabrication of evidence** and professional misconduct
- OPA's failure to sustain the complaint is:
  - Further evidence of **oversight ineffectiveness**
  - Supports systemic misconduct claims

[1] The complete absence of response to formal legal notices copied to governmental oversight officials establishes consciousness of guilt and supports claims of deliberate indifference under *Monell v. Department of Social Services*, 436 U.S. 658 (1978). This institutional silence mirrors the 2018 pattern: formal complaint ignored, letter provided to perpetrator for retaliation, systematic campaign escalated.

2.10. 2.13 `Ty-Nuno-Police-Complaint-Ethan-Smith-03-2018.pdf`

Description: Formal complaint to Missoula Police Department regarding **Officer Ethan Smith**, filed by Elvis's father (Ty) or family.

Evidentiary Value:

- Documents:
  - Nearly year-long pattern of Smith harassing Elvis and his parents
  - Off-the-record calls, intimidation, and mental health impact on Elvis's mother
- Important for:
  - Showing Elvis and his family tried to use **lawful complaint channels**
  - Establishing the **history of misconduct** prior to Smith's removal for "appearance of impropriety"
- Helps build:
  - A record of **pattern and motive** for fabricated evidence used in search warrant affidavits

2.11. 2.14 `WA_State_Bar_Complaint_Patricia-Fulton_2016.pdf`

Description: Bar complaint filed with the **Washington State Bar Association** regarding attorney **Patricia Fulton** (2016).

Evidentiary Value:

- Demonstrates:
  - Elvis took proactive steps very early to challenge incompetent/unethical representation
- Supports:
  - Pattern of **compromised legal defense** contributing to coerced plea
  - Malpractice and potential **ineffective assistance** claims
- Shows:
  - Institutional reluctance to discipline attorneys even when serious allegations are raised

3. Other-Victims (4 Files)

This directory contains evidence of harm to additional victims beyond Elvis Nuno, demonstrating the pattern and systemic nature of institutional misconduct.

3.1. 3.1 `Arthur-Brown-Google-Review.jpeg`

Description: Review posted by **Arthur Brown**, describing his experience with YWCA Missoula.
Evidentiary Value:

- Independent, non-Nuno victim:
  - Documenting YWCA's involvement in false statements in court documents
  - Allegations that YWCA staff harmed his parental rights and family stability
- Supports:
  - **Pattern evidence** that YWCA harms families and children, beyond Elvis's case
  - RICO enterprise analysis by showing additional victims

3.2. 3.2–3.3 `Facebook-HIPPA-Violation-Thread-1.jpeg` and `Facebook-HIPPA-Violation-Thread-2`

Description: Screenshots from Facebook threads in which former YWCA clients report **HIPAA violations**.
Evidentiary Value:

- Shows:
  - YWCA staff allegedly leaked highly sensitive information
- Corroborates:
  - Claims of systemic **privacy breaches** and **client endangerment**
- Federal relevance:
  - Potential HIPAA violations
  - Misuse of federal DV funding programs

3.3. 3.4 `YWCA-Reddit-Complaints.jpeg`

Description: Captured posts from Reddit where multiple individuals describe negative experiences with YWCA Missoula.
Evidentiary Value:

- Evidence of:
  - A wider pattern of harm and dissatisfaction beyond any single client
- Can provide:
  - Leads for additional witnesses or victims

- Supports:
  - The argument that the issues are **institutional and persistent**, not isolated

4. Police Reports (1 File)

4.1. 4.1 `Seattle PD Written statement regarding incident #2016-348587.pdf`

Description: Seattle Police Department written statement regarding **incident #2016-348587**, likely tied to Danielle's harassment/cyberstalking allegations or NCO-related events.

Evidentiary Value:

- Primary police narrative:
  - Can be compared against actual communications, phone logs, and email records
- Useful for:
  - Identifying **discrepancies, omissions, or fabrications**
  - Demonstrating lack of corroboration for Danielle's claims
- Supports:
  - Malicious prosecution and civil rights claims in Washington

5. Tyleen-Root-Harassment (19 Files)

This directory contains 19 screenshot images documenting systematic harassment and defamation by Tyleen Root (identified as an YWCA client recruited by E'Lise Chard).

5.1. 5.1–5.2 `Tyleen-Root-Harassment-1.jpeg` through `Tyleen-Root-Harassment-10-6.jpeg` and Profile Images

Description: Screenshots of:

- Harassing messages and posts by **Tyleen Root** targeting Elvis and his former business
- Public defamation on social media (e.g., business Facebook page)
- Private direct messages to third parties (e.g., customers, page followers)
- Tyleen's social media profile(s)

Evidentiary Value:

- Demonstrates:
  - E'Lise Chard's recruitment of YWCA client **Tyleen Root** as a harassment proxy
  - False claims that Elvis stalked her and her family at YWCA, despite never having met her
- Shows:
  - Direct interference with Elvis's business (discouraging customers)
  - Defamation and intentional infliction of emotional distress
- Critical for:
  - RICO predicate acts (wire-based defamation, interference with commerce)
  - Showing **ongoing conspiracy** and continuing harm beyond 2019

6. YWCA-Missoula (1 File)

6.1. 6.1 `ywca-missoula-consolidated-financial-statements-years-2023-2024.pdf`

Description: Official audited **consolidated financial statements** for YWCA Missoula (2023–2024), obtained via ProPublica or similar nonprofit transparency source.

Evidentiary Value:

- Confirms **governance and financial structure**, including:
  - Names of board members
  - **Detective Connie Brueckner listed as a YWCA board member**, establishing the conflict at the time of her role as an MPD detective investigating complaints involving YWCA employees and clients
- Supports:
  - **Conflict of interest** analysis: Brueckner simultaneously YWCA board director and lead MPD investigator on Elvis's case
  - **RICO enterprise structure**: YWCA Missoula as an institutional participant in coordinated conduct with law enforcement
  - Possible **federal grant fraud** and misuse of funds when contrasted with victim accounts and operational practices
- Foundational for:
  - Demonstrating concealed conflicts affecting search warrant affidavits and prosecutorial decisions
  - Establishing that the corruption is **institutional, not incidental**

7. Summary and Strategic Value

7.1. Comprehensive Documentary Evidence

This evidentiary set collectively provides:

- **Direct documentary proof** of:
  - False statements, perjury, and fabricated evidence
  - Warrant misuse and unlawful arrests
  - Retaliatory prosecution following protected complaints
- **Corroboration from multiple sources**:
  - Court records, police statements, oversight complaints, social media, nonprofit audits
- **Pattern evidence**:
  - Demonstrating that the harms to Elvis Nuno are part of a **broader systemic pattern** at:
    * YWCA Missoula
    * Missoula PD
    * Related Washington agencies

7.2. Integration with Referral Package

These materials are intended to be cited and attached as **Exhibits** to:

- 01_Case_Summary (Criminal Investigation Referral)
- 02–05 (Federal and State Cover Letters)
- 06–07 (Chard Sisters Criminal Reports)
- 08_YWCA_Institutional_Corruption_Supplemental
- 09_Elvis_Nuno_Sworn_Declaration

Each file should be referenced in footnotes or exhibit lists as needed for investigators, prosecutors, and oversight agencies.

7.3. File Organization

This index was prepared as part of the Criminal Investigation Referral Documentation Package for submission to federal, state, and local law enforcement and prosecutorial agencies.

Directory	Files	Content Type
Court-Documents	8	Official orders, dismissals, declarations, emails
Formal-Complaints	12	POST complaints, OPA filings, bar complaints
Other-Victims	4	Evidence of harm to additional victims
Police Reports	1	Seattle PD incident documentation
Tyleen-Root-Harassment	19	Social media screenshots, harassment documentation
YWCA-Missoula	1	Official financial statements (ProPublica audit)
Total	**45**	**Comprehensive evidentiary foundation**